

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CLBC048835: CYROUS SAHEBGHALAM vs GELENA B GUTLIN

07/24/2026 in Department 43

Motion for Leave to File a Cross-Complaint and Reclassify Action

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Motion for Leave to File a Cross-Complaint and Reclassify Action

Tentative Ruling:

Defendant's Motion for Leave to File a Cross-Complaint is DENIED.

Defendant's application to reclassify the action is DENIED as moot.

Defendant's telephone and email privileges in communicating with the court are ORDERED restricted to no more than one telephone call and one email per court day. Future inappropriate behavior in communications with court staff may result in total revocation of telephone and/or email privileges.

Plaintiff is ordered to serve notice of the Court's ruling.

DISCUSSION

This action arises from a residential tenancy at a property in Oak Park, California. Plaintiff landlord initially filed an unlawful detainer action against Defendant tenant on August 20, 2025, for nonpayment of rent. Defendant filed her Answer on October 3, 2025. Defendant vacated the premises on October 12, 2025. Because possession was no longer at issue, the matter was reclassified as a civil limited jurisdiction matter and transferred to a civil department on November 3, 2025.

On June 2, 2026, Defendant served the instant motion seeking leave to file a Cross-Complaint asserting seven causes of action, including wrongful withholding of security deposits, breach of the implied warranty of habitability, retaliation, and elder abuse. Defendant also seeks to reclassify the action from limited civil to unlimited civil based on the valuation of her cross-claims. Plaintiff's Motion for Summary Judgment is currently set for hearing on September 3, 2026. A Trial Setting Conference is scheduled for July 28, 2026. No trial date has been set.

I. Credibility and Prior Misrepresentations to the Court

A court's exercise of discretion under Code of Civil Procedure §§ 426.50 and 428.50 must be grounded in equity and the interests of justice. (*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94.) Here, the Court takes judicial notice of its own records and prior orders in this action. In a June 3, 2026, ruling on a prior motion for relief filed by Defendant, this Court expressly found that Defendant intentionally made false statements under penalty of perjury in an effort to deceive the Court and obtain a favorable ruling. Rather than appearing at the hearing and contesting the finding, Defendant contacted the Court before the hearing and submitted on the tentative, thereby conceding the truth of the Court's assessment.

This prior judicial finding significantly and adversely impacts Defendant's credibility. (See California Evidence Code § 780. Also, *People v. Cook* (1978) 22 Cal.3d 67, 86: "The fact that the misstatements are intentional injects a new element into the analysis, to wit, the doctrine that a witness knowingly false in one part of his testimony is to be distrusted in the whole. Encapsulated in the common law maxim "falsus in uno, falsus in omnibus," long codified in our statutes...") In her reply papers and supporting supplemental declaration to the present motion, Defendant purports to "cure" her initial failure to attach the proposed Cross-Complaint and her failure to provide "Exhibit B" (her Google Voice call records) to justify the extensive delay. However, because the Court has already determined that Defendant has previously intentionally misled this Court to gain advantage, the Court places no evidentiary weight on Defendant's uncorroborated factual declarations.

II. Lack of Good Faith and Extensive Delay (CCP § 426.50)

While CCP section 426.50 provides a liberal standard for filing compulsory cross-complaints, leave must be denied if the moving party is not acting in good faith (*Gherman v. Colburn* (1977) 72 Cal.App.3d 544, 558). "Bad faith" under section 426.50 is established when a party's conduct works a substantial injustice, demonstrates legal gamesmanship, or involves dishonest behavior (*Id.* at 559).

Defendant was fully aware of her cross-claims as early as September 9, 2025. Yet, she waited over nine months to file this motion, bringing it less than six weeks before Plaintiff's long-pending Motion for Summary Judgment is set to be heard.

Combined with her established history of material misrepresentations made with the intent to deceive the Court, Defendant's nine-month delay appears to be a tactic conceived in bad-faith. A party cannot manufacture good faith or equity when they approach the Court with unclean hands. ("No one can take advantage of their own wrong." Civil Code § 3517.) Permitting the Cross-Complaint at this juncture would cause severe prejudice to Plaintiff, who has spent months preparing and awaiting a Motion for Summary Judgment that would be disrupted or derailed by this late pleading. (See *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897.)

III. Communication with Court Staff

Defendant asserts in her declaration that she attempted to place over 22 telephone calls to Department 43 and the Civil Unit within a 37-day window to secure an ex parte date. The Court inquired of court staff and was advised that Defendant's calls were returned but went unanswered. Defendant cannot complain that she was unable to schedule a hearing when she failed to accept return calls from the court.

The Court also notes that an excessive number of calls from Defendant and a gentleman on her behalf have been answered by staff over the life of this matter during which court staff has been subjected to abusive behavior including shouting and untoward comments and demands. If this behavior continues, Defendant's telephone privileges **will be fully revoked by court order** pursuant to the Court's authority under Code of Civil Procedure § 367.65 and California Rule of Court rule 3.762. The Court cannot permit a party to abuse judicial staff. Beginning with this ruling, Defendant's telephone and email privileges are ordered restricted to no more than one telephone call and one email per court day. This is a sufficient allowance to communicate with the court.

IV. Procedural Defect

Independent of the bad-faith analysis, Defendant's moving papers were fatally defective when filed because they omitted the proposed Cross-Complaint entirely, in violation of California Rules of Court, rule 3.1324. Attempting to "cure" a missing, core moving component via a Reply brief is procedurally improper, as it deprives the opposing party of a fair, meaningful opportunity to address the specific allegations in their primary opposing brief. This is a separate and independent ground for denial of the motion.